

Authority for Personal Data
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The State Secretary for Finance
P.O. Box 20201
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Date

January 16, 2024

Our reference

2023-226534

Your letter dated

August 31, 2023

Your reference

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Subject

Provision of data by customs to police, KMar, FIU, and FIOD

Dear Ms. de Vries,

In your letter dated August 31, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) and Article 35b, paragraph 1, under b, of the Police Data Act (Wpg), regarding the draft amendment of the General Customs Act concerning the establishment of a legal basis for the provision of data by the inspector to the police, the Royal Military Police (KMar), the Financial Intelligence Unit - Netherlands (FIU), and the Tax and Customs Administration/Fiscal Intelligence and Investigation Service (FIOD), for the purpose of carrying out police or supervisory tasks (hereinafter: the draft).

Assessment of the personal data aspects of the draft gives the AP reason to make some comments.

Scope of the draft

This legislative amendment makes it possible that in some cases, already in the supervisory phase, when there is not yet a (reasonable suspicion of a) criminal offense, customs data can be provided to the police, KMar, FIU, or FIOD.

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Provision to the police and KMar

The first possibility to provide data to the police or KMar relates to the provision of data that may be relevant for gaining insight into crimes for which, according to the legal definition, a warrant for pre-trial detention could be issued.

The second possibility to provide data to the police or KMar relates to the provision of data in individual cases, if customs deems this necessary in light of a compelling public interest.

Further rules regarding these processes will be established by general administrative order.

Provision to FIU and FIOD

Customs can provide data to the FIU and FIOD insofar as they need it for the execution of their tasks aimed at gaining insight into goods flows with a view to preventing money laundering through

international trade transactions.

The second possibility to provide data to (exclusively) the FIOD is aimed at providing data and information regarding individual cases necessary for criminal enforcement across the entire operational area of the FIOD.

Further rules regarding these processes will be established by general administrative order.

2 Including personal data (Explanatory Memorandum p. 10).

3 Article 1:39, paragraph 1, Adw. This may also involve providing large amounts of data (bulk information) for broad analysis such as phenomenon research and system analysis, where the police or KMar requests customs to provide data regarding a specific sector, product group, region, etc., for example, all declaration data from transport companies in a certain region (Explanatory Memorandum p. 5).

4 The term “compelling public interest” refers to: the interest of national security, public safety, or the economic well-being of the country, the prevention of disorder and criminal offenses, the protection of health or public morals, or the protection of the rights and freedoms of others. This aligns with the case law of the ECHR (Explanatory Memorandum p. 10).

5 Article 1:39, paragraph 2, Adw. For example, the police observes that a car with occupants is suspiciously lingering in the vicinity of an (air)port area. The police wants to know if customs has previously encountered this car during a customs check (Explanatory Memorandum p. 5).

6 Article 1:39, paragraph 4, Adw.

7 Including personal data (official information via email).

8 Also referred to as Trade Based Money Laundering (TBML).

9 Article 1:40, paragraph 1, Adw. Here too, it may involve providing large amounts of data (bulk information) for broad analysis such as phenomenon research and system analysis, where the FIU or FIOD requests customs to provide data regarding a specific sector, product group, region, etc. (Explanatory Memorandum p. 6).

10 This operational area is described in the Explanatory Memorandum as: “addressing financial and fiscal crime” (p. 7).

11 Article 1:40, paragraph 2, Adw.

12 Article 1:40, paragraph 4, Adw.

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Previous advice AP

The AP advised on an earlier version of this proposal as follows:

“The AP advises to describe much more accurately in which cases customs data is needed for police or KMar while there is (still) no reasonable suspicion of a criminal offense. It should also be indicated in what form and scope this data will be provided, and what safeguards are put in place to limit this data provision to what is necessary.”¹³

The draft has addressed this as follows:

1. In Article 1:39 and in the explanatory memorandum¹⁴, it has been described more accurately in which cases customs data will be provided to police or KMar (thresholds for provision).

2. The explanatory memorandum elaborates on the manner of provision (if possible anonymized) and the scope of the data provision.¹⁵

3. In lower regulations, further rules will be established regarding data provisions (including which data will be provided).¹⁶

The provision to FIU and FIOD was not part of the legislative proposal on which the AP previously

advised (in 2021).

Advice on this draft

Anonymization

The explanatory memorandum notes that data will be anonymized if possible before being provided by customs to the mentioned parties.¹⁷

Anonymization is generally the most effective form of protection of personal data and is therefore also an important safeguard against misuse here.

The AP therefore advises to incorporate this principle into the draft itself, and not only in the explanatory memorandum.

Police data

In the draft, the data received by police, KMar, FIU, and FIOD is classified as police data within the meaning of the Police Data Act (Wpg).¹⁸

13 Advice AP August 19, 2021 (z2021-10869), p. 4.

14 See p.2 of the advice.

15 See footnote 3 of the advice.

16 Article 1:39, fourth paragraph.

17 MvT p. 5, 7. It has been indicated officially that this applies to all provisions covered by the draft.

18 Article 1:39, third paragraph (police and KMar), and Article 1:40, third paragraph (FIU and FIOD).

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These provisions are redundant: for police and KMar, this already follows from the Police Data Act¹⁹; for FIOD, this follows from the Decree on Police Data for Special Investigative Services²⁰; for FIU, this follows from the Act on the Prevention of Money Laundering and Financing of Terrorism (Wwft).²¹

The AP therefore advises to delete Article 1:39, third paragraph, and Article 1:40, third paragraph.

Workload AP

It is likely that the draft will require the AP to make limited additional efforts. This effort has not yet been accounted for in the financing of the AP. This will need to be addressed in consultation with the Minister for Legal Protection - who is responsible for the budget from which the AP is financed - prior to the entry into force. For that reason, a copy of this advice is sent to the Minister for Legal Protection.

Disclosure

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

19 Article 1, under a, Wpg in conjunction with Articles 3 and 4 Police Act.

20 Article 2, first paragraph, Decree on Police Data for Special Investigative Services.

21 Article 14, third paragraph, Wwft.